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The Cyprus Peace Talks: A Critical Appraisal*

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Despite three decades of persistent efforts to bring about a negotiated settlement, the small island of Cyprus still remains physically and demographically divided. Failure of the 2004 Annan Plan has compounded the need for a thorough reassessment of the Cyprus peace process with a view to ascertaining the reasons for its collapse. Drawing on the findings of research that attributes the failure of earlier negotiations to the negative balance between impeding influences and facilitating factors, the author examines the manner and the extent to which the Annan initiative *internalized* the lessons learned from these past failures. Was the collapse of the Annan initiative best explained in terms of the shortcomings of the mediating strategy, or did it fail because of the continuing intractability of the conflict (i.e. the two sides remain too far apart on the fundamentals for any mediating strategy to work)? This article examines how the Annan strategy sought to change the imbalance between impeding and facilitating factors, asking, in particular, where it made headway, where did it not, and why. It goes on to characterize the overall impeding/facilitating balance in the post-Annan period and advances a number of propositions on how the imbalance may be shifted in a more positive direction.

Introduction

After a 20-hour session of intensive negotiations, an exhausted and disenchanted UN Secretary-General Kofi Annan declared on 11 March 2003 that it was the 'end of the road' for his three-year Cyprus initiative (UN, 2003b). Thirteen months later, commenting on the failure of his second attempt, a more circumspect Secretary-General would simply remark that 'a unique and historic' opportunity to resolve the longstanding problem had been lost (UN, 2004b).

The failure of the Annan Plan – the initiative that came closest to achieving agreement – prompts a critical reappraisal of the entirety of the peace process as it has unfolded over the last thirty-odd years, including an analysis of the factors that contributed to its failure. One reason for failure was alluded to by the UN Secretary-General himself in his 2003 report: namely, that the intercommunal negotiations¹ – alone and in isolation – were incapable of bringing about a resolution of the Cyprus conflict (UN, 2003a: para. 5–6). This confirms previous assessments that influences external to the negotiating process not only impinge on it, but are central to its outcome. In other words,

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¹ For this article, the 'Cyprus peace talks' are interchangeably referred to as 'intercommunal talks', 'intercommunal negotiations' or 'Cyprus talks', although the latter may encompass the participation of additional parties such as Greece, Turkey, the UK, the USA, and, in recent times, the EU.

success or failure in the intercommunal talks is ultimately determined by the conflict's contextual framework, as well as the changing nature of the various parties' objectives and strategic priorities.

However, given the protracted record of the intercommunal negotiations, the above explanation, insightful as it may be, seems inadequate. The demise of the Annan effort raises questions of continuity and whether lessons were learnt from previous negotiated attempts. The question is: to what extent, and in what way, did the Annan initiative attempt to apply the lessons drawn from the preceding decades' failed peace negotiations? Was the failure of the Annan initiative a necessary by-product of the irreconcilable positions of the main protagonists, or was it also a failure to learn from the mistakes of the past? Did the initiative fail because of the shortcomings of the mediating strategy, or did it fail because of the continuing intractability of the conflict?

In an attempt to answer these questions, the article proceeds in five consecutive steps. The Annan initiative must be evaluated within the context of earlier unsuccessful efforts aimed at finding a peaceful resolution to the conflict. To understand why the Annan effort failed, the article first examines those factors that undermined previous attempts at resolving the Cyprus problem. Second, having established the impeding/facilitating factors, the article surveys the attitudes and actions of the various parties on the eve of the Annan initiative. Third, it examines how the Annan initiative addressed the facilitating/impeding imbalance, evaluates its success and failures, and ascertains what prevented the strategy from succeeding. Fourth, the article conducts an overall assessment of the facilitating/impeding factors afflicting the Cyprus peace talks. Finally, the article concludes by putting forward certain ideas that might steer the peace process in a promising direction.

Background

Cyprus features prominently among a cluster of intractable international conflicts that transcend their own national boundaries and whose resolution has eluded third-party mediation for almost half a century. The Cyprus dispute has preoccupied the minds of theorists and practitioners of conflict resolution ever since the United Nations stationed its first peacekeeping force on the island in 1964. From its earliest stages, the conflict has challenged conventional international analysis and defied traditional approaches to conflict management, negotiation and peacemaking.

Despite the fact that the Cyprus question has figured in international diplomacy for over 50 years, it is generally understood that the events of 1974 dramatically changed the nature of the problem, propelling it in an entirely new direction and compounding the difficulties faced in all subsequent attempts at mediation. All peace negotiations have started from this premise; and, in many respects, the intercommunal talks are still dealing with the effects of the 1974 partition of the island.

In essence, the Cyprus conflict has become a prime example of linkage politics, operating as it does on five interrelated levels: the local (referring to each of the two antagonistic communities), the national (that is, Cyprus as a whole), the subregional (understood as the Cyprus–Greece–Turkey triangle), the regional (which encompasses its EU, Southern European and Middle Eastern contexts), and the international (which brings into relief all other external actors, not least the United Nations). Within the intercommunal talks – the main formal negotiating framework – the conflict has been treated as an internal ethnic dispute between the majority Greek-Cypriot and the minority Turkish-Cypriot communities. These negotiations evolved following the intervention of the UN as a third-party mediator in 1968, a

role that has been pivotal to their longevity (Richmond, 1998). However, by virtue of its history, geography and demography, the Cyprus question has never been restricted to its domestic parameters. As with Sri Lanka, Northern Ireland and Israel–Palestine, the Cyprus conflict, when set in its regional and sociopsychological setting, suffers from the ‘double minority complex’. This means that, in addition to blurring the inter/intrastate nature of the conflict, the ethnic divide provides us with an understanding of the ‘double (in)security’ dilemma preoccupying both communities and their motherlands. Thus, the Cyprus conflict has always been an integral component of the broader Greek–Turkish problem.

Factors Prior to the Annan Initiative

To gain a deeper appreciation of the underlying causes of the collapse of the Annan initiative, we need to familiarize ourselves with previous negotiated attempts to settle the Cyprus problem. In a previous study, I examined the impeding and facilitating factors relevant to conflict resolution during the 1974–94 period (Michael, 1998). The key conclusion reached was that, during this 20-year period, the overall balance between facilitating and impeding influences had clearly favoured the negative side of the ledger. A set of closely interrelated obstacles had consistently prejudiced the outcome of the negotiations and overwhelmed the positive impact of internal or external developments at any given time.

On a structural level, the ‘linkage’ approach to negotiations meant that there could be no settlement unless all aspects of the Cyprus problem (i.e. those relating to constitution, territory and security) were simultaneously agreed upon. As the talks progressed, new points of disputation arose. In addition, negotiations were often hampered by new and conflicting interpretations

of concepts and principles that had previously been agreed upon. Also hindering the process, through much of this period, were the contrasting motives, priorities, preferences and objectives of the two sides, who differed significantly on questions of maintaining/ changing the status quo; rapid unification/ gradual evolution; federation/confederation; and unitary/(con)federal arrangements.

Second, the insecurity and mistrust felt by each side created a reluctance to countenance any change to existing arrangements. The close relationship and interdependence between the two communities, on the one hand, and the principal external powers (Greece and Turkey), on the other, exacerbated this phenomenon. The conflictual relationship between Greece and Turkey also impeded the negotiations and altered the political environment, forcing both sides – in line with a clearly recognizable action–reaction dynamic – to adopt confrontational postures. This was especially so in the case of the Turkish-Cypriot community. It had a different historical relationship with Turkey, was less self-sufficient and lacked an opposition that could effectively challenge the prevailing orthodoxy. As the conflict became protracted, both communities chose to pursue their respective interests, with the aim of strengthening or promoting their legitimacy as independent international political actors.

Third, when the two sides abandoned communication and the intercommunal talks were no longer considered a priority, there was a return to prior levels and expressions of tension. Placed in this context, unilateral actions designed to address military and/or political insecurities acquired potentially dangerous dimensions. The net effect was escalating military capabilities on both sides, intensification of international campaigns to bolster the antagonists’ respective causes, provocative statements and the re-emergence of nationalist sentiment. The Cyprus problem became the epicentre of the broader

Greek–Turkish conflict, eventually implicating both states.

Paradoxically, these confrontational phases were often followed by more cooperative ones, injecting into the negotiating process a fresh impetus for change and encouraging the two communities to break from their previously entrenched positions. This was a necessary condition of progress. For example, the 1985 High Level Meeting came about after the 1983 Turkish-Cypriot Unilateral Declaration of Independence. The Pérez de Cuéllar and Boutros-Ghali initiatives of the early 1990s were heavily influenced by the Aegean crisis of 1988 and the Davos experiment. Similarly, border clashes in 1993–94 and the waning of Greek–Turkish relations boosted the confidence-building measures (CBMs).

Lessons Learnt

The most important lesson learnt from this 20-year process was that the intercommunal talks, in their current form and operating in isolation from other initiatives and processes, could not overcome existing structural and psychological obstacles to a negotiated settlement. The relative failure of the intercommunal talks stemmed from their inability to address a number of political, organizational and social-psychological hurdles. The hurdles bear closer examination.

First, the negotiating process had developed a logic and a rhythm which did not necessarily correspond to the psychology of the political situation it was seeking to remedy. When, for example, dramatic developments occurred in the internal or external environments of the two parties, the intercommunal talks seemed incapable of capturing the conciliatory mood of the day.

Second, the history and geography of the region is such that to contemplate any exclusion of the two principal external powers, Greece and Turkey, from the resolution of the Cyprus problem was simply

unrealistic. Closely linked to the above considerations was the failure to bring about a sustainable shift in the external environment, especially in the relationship between Greece and Turkey, in ways that would provide a more positive congruence between internal and external influences.

Third, the common interests shared by the two communities, and the mutual benefits that could result from a negotiated settlement, had not been sufficiently emphasized conceptually, practically or organizationally during the intercommunal dialogue. The players in both communities who could discern these common benefits, and who had an interest in establishing a constructive intercommunal relationship, did not have the leverage or the resources to endow their perceptions and priorities with the necessary degree of legitimacy. Nor did the mediating parties have a clear sense of the perceptual shift that was necessary or the resources that would be needed to underpin it (Fisher, 2001). Finally, the difficulty associated with persuading their respective compatriots, and each other, of the value of rapprochement was compounded by the physical separation of the two communities.

Attitudes, Actions and Positions on the Eve of the Annan Initiative

Since the 1950s, and especially the 1960s, the two communities had increasingly been politically, economically, socially and psychologically separated. The 1974 partition gave this separation a geographical and ethno-demographic dimension. This deeply entrenched separation constitutes the main impediment to any rapprochement between the two communities – a rapprochement that remains a fundamental precondition for any sustainable unification of the island and its inhabitants. The net effect of the physical division of the island had been to hamper communication not only between the two

communities, but also, most importantly, between those forces that were prepared to pursue, or at least explore, common interests and objectives.² In addition, postponement of a solution occasionally prompted one or both parties to resort to unilateral actions outside the confines of the process, thereby exacerbating the conflict and further impeding negotiation and third-party mediation.

Greek- and Turkish-Cypriot (Negotiating) Mind-Sets

The philosophical framework of the Greek-Cypriot negotiating position has reflected a collective value-system shaped primarily by the events of 1974. A general sense of insecurity, a fundamental distrust of Turkish-Cypriot secessionist objectives and fear of Turkish occupation of the whole island have coloured all Greek-Cypriot positions. These concerns were especially evident in the rejection of calls for a joint federal or transitional government and repeated calls for demilitarization, and were the primary driving emotions for the rejection of the Annan Plan at the 2004 referenda.

Protracted negotiations, with little or no sign of progress, caused disillusionment in the Greek-Cypriot community and forced its leadership to explore other avenues to enhance its position beyond the confines of the intercommunal talks. These included enhancing its military defence as a way of

addressing the security dilemma, a policy of internationalizing the Cyprus problem and, throughout the 1990s, vigorous pursuit of its accession to the EU as a means of securing a 'European solution'.

However, an important change to what was perceived initially as an identity-need to fulfil their 'historical' destiny was the willingness of the Greek Cypriots to make concessions. Indicative of this was the abandonment by all mainstream political forces of the historical claim of union with Greece, *énosis*, and, more importantly, the eventual acceptance of a bicomunal/bizonal federation. Rhetoric aside, this implied acceptance that not all Greek-Cypriot refugees would be able to return to their homes. Greek-Cypriot political culture also showed itself to be more conducive to internal debate over the future of the island: more autonomous from its motherland, more inclined to the incorporation of common interests, and more prepared to address issues of special concern to the Turkish-Cypriot community. Such concerns included protection of their (pre-1974) properties in the south.

However, growing prosperity, a successful international campaign, a resurgence of ethno-nationalism and the allure of EU membership have rendered Greek Cypriots impervious to socio-economic incentives and reluctant to relinquish exclusivity over state sovereignty.³ Internalization of the 'blame game' compounded the 1974 dilemma, sharpening the rift between the *pragmatistés* (the pragmatists) and *mahitiki parátaxi* (the fighting faction).⁴ While for decades the Greek-Cypriot

² Although the causes of non-communication are deep-rooted, the physical division of the island separating Greek and Turkish Cypriots defines the contextual environment that, on the one hand, prevents the formation of a bicomunal civil society (and market) while, on the other hand, facilitating the introspective (and negating) nature of their corresponding ethno-nationalisms. The partial lifting of travel restrictions between northern and southern Cyprus in April 2003 has allowed for initial contact between non-elite Greek and Turkish Cypriots. As yet, no sociological study has been published about its impact on Greek- and Turkish-Cypriot attitudes to each other. However, the ambiguous (legal-jurisdictional) status of this arrangement combined with a 'high degree of mistrust' between officials has created an environment where cross-'border' crime is on the increase (UN, 2005: para. 23).

³ Since 2003, the World Bank classifies the Republic of Cyprus (RoC) as a high-income economy. According to the World Bank in 2004, the RoC ranked 35th in GNI per capita PPP at \$22,330, ahead of both Greece (38th at \$22,000) and Turkey (89th at \$7,680). In comparative terms, Greek Cypriots are three times wealthier than Turkish Cypriots (GDP per capita \$21,600 : \$7,135).

⁴ Condescendingly, opponents refer to the pragmatists as *Endotikoí* (the submissive) and fighting faction as *Aporiptikoí* (the rejectionists). In recent times, this ideological divide has evolved into the pro- and anti-Annan factions.

leadership proclaimed that 'our borders are at Kyrenia', they were simultaneously negotiating for a compromise (bicomunal/bizonal) solution. The net effect was that accrued Greek-Cypriot expectations were incompatible with the negotiations' outcome delivery.

The prime objective of the Turkish Cypriots in the negotiations has been to enhance and legitimize the post-1974 conditions by preserving and entrenching the basic structures of their administration. Their historical experience as an isolated minority, especially during 1963–74, was the primary reason for distrusting the Greek Cypriots. They feared that reunification would re-establish their minority status (Soysal, 1992). On a deeper socio-psychological level, the need for 'respect' (*saygı*) evolved in reaction to the Greek Cypriots' pursuit of an ethno-nationalist destiny, one which excluded the Turkish Cypriots and therefore turned them towards Turkey (Bryant, 2001: 903).

Typical of most minority groups, the Turkish Cypriots were inclined to focus on communal rather than common interests (Burton, 1990: 142–145). As stated in their 1975 and 1983 unilateral declarations, this focus resulted in their pursuit of autonomy and self-determination, both within and outside the negotiation process (Ertekün, 1984). This, in turn, was embodied in the often-stated preference for confederation or loose federation – a position that exacerbated Greek-Cypriot suspicions about the extent of their commitment to a unified Cyprus. Throughout this period, the Turkish-Cypriot side was determined to approach the negotiating table not as an inferior party, but as one of two equal entities coming together to co-found a new confederacy.

Another factor impeding progress was the Turkish Cypriots' reluctance to make any substantial territorial concessions. The Turkish Cypriots held the advantage on the territorial issue but concessions were nevertheless expected of them. Procrastination on the

resettlement of Varosha and their refusal to concede the return of the northwestern town of Morphou failed to address the Greek Cypriots' minimum territorial demands, thereby hampering progress towards an overall agreement.

An additional internal obstacle was the heavy dependence of the Turkish-Cypriot minority on support from mainland Turkey. This, in turn, increased the Greek Cypriots' belief that the Turkish Cypriots were no more than pawns in a larger Turkish strategic design. Finally, one of the main consequences of Rauf R. Denktaş's dominance of the Turkish-Cypriot leadership throughout this period was that there was virtually no change in Turkish policy. Denktaş's total control prevented the emergence of an alternative and more conciliatory Turkish-Cypriot view.

An important development in the post-1974 period was increased levels of Turkish-Cypriot self-confidence emanating from a greater sense of security. For the first time, this led to the development of political parties and, subsequently, to a Turkish-Cypriot opposition that advocated coexistence with the Greek Cypriots, as well as less dependence on Turkey. The movement for cooperation between the two communities was not only promoted by the left-wing opposition parties, such as *Comhuriyetçi Türk Partisi* (CTP) (Republican Turkish Party) and *Toplumcu Kurtulus Partisi* (TKP) (Communal Liberation Party). From the mid-1990s, this movement also gained currency among the middle and professional classes. The desire to establish channels of communications and forge some form of cooperation with their Greek-Cypriot counterparts was also reflected in the participation of civil and business actors in a series of bicomunal management initiatives sponsored by third parties.

What emerges from this discussion is that, until the Annan initiative, both communities

had, for different reasons and in different ways, become supporters of the status quo. This imperfect state of affairs was at least preferable to the uncertainties of any future regime that did not incorporate the antagonists' maximum positions/expectations (zero-sum game).⁵ On one side, the Turkish Cypriots feared that any reunification within a strong federation would see their position revert to the pre-1974 situation as an isolated minority dominated by a larger and more powerful Greek-Cypriot community. On the other hand, the Greek Cypriots viewed any federal solution that did not encompass a strong central authority and the withdrawal of Turkish troops (and settlers) as no better than their existing predicament. They refused to sacrifice their legitimacy as the sole recognized Cypriot state and risk the total occupation of the island. Though the motivations and the rationales may have differed, the positions of the parties were similar in one important respect: they both considered the incentives for change to be worth less than the security of the status quo. In this context, the lack of a solution was due to the unwillingness of elites on both sides to commit to a compromise mind-set, preferring instead to persevere with their own BATNA (Best Alternative to a Negotiated Agreement). They dedicated their energies instead to strengthening institutions, which did little to change their entrenched positions, and perpetuating a Cold War-like culture (Richmond, 1999: 57). Fear of worst-case scenarios paralysed the will and thwarted the efforts of those pursuing a riskier, but ultimately more promising, course.

The Principal External Powers

From the Greek-Cypriot point of view, the biggest impediment to a solution was the

presence of Turkish troops on the island. A related concern was the settlement of mainland Turks on the northern part of the island. This created the immediate impression among Greek Cypriots that the Turks were pursuing a population policy designed to change the demographic balance on the island. Moreover, the settlement of mainland Turks took place in conjunction with the emigration of Turkish Cypriots from the island (Michael, 1998: 203–205). This phenomenon introduced a more serious obstacle to agreement, because it altered the composition and character of the Turkish-Cypriot community. Apart from the implications for Turkish Cypriots themselves, it meant that the Greek Cypriots faced an even less familiar and perhaps more hostile Turkish community in the north.

Not unconnected to this was Turkey's unwillingness or inability to pressure Denktaş at moments in the negotiations when agreement seemed, if not close, at least feasible. Paradoxically, interdependence of mainland and Cypriot Turks allowed Denktaş to exploit Turkey's internal political contradictions by directly appealing to Turkish nationalist sentiment (UK Parliament, 2002: Examination of Witnesses, 15 February, Phillip Robins, question 47). In particular, Denktaş sought to capitalize on the more serious conflicts between the traditional secular Kemalist ruling elite and the emerging Islamists, as well as the divisions between the civilian government and the military establishment.

Until the election of the Adalet ve Kalkınma Partisi (AKP, Justice and Development Party), Turkey failed to accurately assess the damage which the Cyprus problem had inflicted on its diplomacy, with regard to both its broader relationship with Greece and its policy on European integration. Nowhere was this more evident than in 1989, when the European Commission rejected Turkey's application, citing its poor human rights record (i.e. regarding treatment of the

⁵ In his 2003 report, Annan confirmed that one of the obstacles to the resolution of the Cyprus problem was the parties' perception of the negotiations as a zero-sum, win-lose process (UN, 2003a: para. 143).

Kurdish minority) and the damaging effects of its dispute with another fellow member (Greece), particularly over Cyprus (European Commission, 1989: para. 9). It became abundantly clear that, in addition to the perception in Europe that Turkey had a non-European culture and religious identity, the withdrawal of Turkish troops from Cyprus was the minimum price that Turkey would be required to pay before joining the EU. Turkey's policy-doctrine – premised on the belief that 'no solution is a solution' and that essentially the Cyprus problem was resolved in 1974 – proved to be at odds with its European aspirations.

As the rapprochements of 1975, 1988 and 1998 suggest, both Greece and Turkey were capable of mediating and managing, if not resolving, their differences. These infrequent improvements in Greek–Turkish relations occurred because they were preceded by confrontationalist moments that brought the two countries perilously close to war (i.e. the events of 1974, the Aegean crisis of 1988 and the Imia/S-300 missile/Öcalan crisis of 1996–99). In addition, the fact that Greece and Turkey shared a pro-European orientation, participated in common forums and both enjoyed a special relationship with the United States had also at times been conducive to a change of mood for greater willingness to cooperate.

The UN as the (Third-Party) Mediator

As the most important external player in the Cyprus problem, the UN derived much political leverage from its legitimacy as an institution of international consensus and as a mediator acceptable to both communities. However, a lack of economic and military muscle rendered the UN incapable of effectively applying pressure or, more importantly, of offering incentives at critical junctures in the negotiations. In the absence of such leverage, UN Secretaries-General, when pursuing their various initiatives, tended to rely in varying degrees on the

United States. While consistently advocating support for UN initiatives throughout this period and while able to call on its special relationship with both Greece and Turkey – which could, in turn, influence their compatriots on the island – Washington had in mind its own alliance priorities and interests in the Cyprus dispute. Notwithstanding official rhetoric, these did not always complement UN resolutions.⁶ Other impediments to effective UN mediation emanated from the UN's methodology in handling the negotiations. The organization's conservative diplomatic style and bureaucratic/cultural/structural obstacles to change saw the UN wedded to a formal legalistic approach to intercommunal negotiations.⁷ Despite its activism, the UN was unable to adopt innovative and imaginative ideas, let alone negotiating strategies and approaches that might have emphasized common interests and mutual benefits.⁸

This was to change, for although the Secretary-General's original intentions were to accommodate and facilitate the negotiating process, his initiatives grew bolder as talks became protracted and frequently bogged down. UN intervention evolved to such a point that the Boutros-Ghali proposals explicitly tackled the controversial territorial issue with the submission of a UN map that, for the first time, sought to establish boundaries. The legitimacy and status of the

⁶ US involvement in the Cyprus problem has always been determined by fluctuations in Greek–Turkish relations and their effects on NATO's eastern flank. All subsequent post-1974 US initiatives (Kissinger, Nimetz plan, Haass, Holbrooke) exhibited a preference for direct bilateral discussions between Greece and Turkey, rather than the UN-sponsored intercommunal talks.

⁷ In his 1999 report, Annan stated that the negotiations had become 'overlain with legalistic abstractions and artificial labels' removing them from the 'actual needs' of the two communities (UN, 1999: para. 7).

⁸ Concurring with this assessment, Mirbagheri (1998: 156) considers the UN's failure to bring about a fundamental change in the two sides' perception of each other as the major impediment to the stalemate.

Secretary-General's office meant that these proposals had a greater chance of receiving favourable consideration by the two parties, since they derived from an independent third party that enjoyed the support of the Security Council and, indirectly, of the international community.

Closely linked to the UN's mediation of the Cyprus problem was the auxiliary role of the United States. As a result of the Turkish arms embargo, a series of initiatives emerged with the direct involvement of the US president. Despite their ultimate failure, American ideas – such as the Nimetz plan, the Haass/Reagan doctrine and the Holbrooke scheme – provided the UN Secretary-General with a reservoir of initiatives, especially in the context of common interests and mutual gains (Haass, 1987). These initiatives also led to a closer relationship between the United States and the UN, with the former prepared to lend effective support to the various initiatives of the Secretaries-General and, where necessary, to exert diplomatic pressure on Greece and Turkey. In the post-Helsinki climate, US policy was geared towards retaining the momentum of Greek–Turkish détente, keeping Turkey focused on its European orientation and increasing pressure on the two communities to reach a settlement before Cyprus's accession impedes Greek–Turkish and Euro-Turkish relations (Barkey & Gordon, 2002).

The preceding analysis would suggest that the attitudes of the conflicting parties to each other and problems with the peace process emanated from key turning points in the conflict's history. These historically significant moments – in particular 1964 and 1974 – generated resentment that came to be embedded in the collective psyche of both communities. This sense of past injustice, operating on both individual and group levels, in conjunction with a strong sense of insecurity, formed the basis for the antagonists' attitudinal behaviour prior to the Annan initiative.

The Annan Initiative: Redressing the Impeding/Facilitating Imbalance

Policymakers, analysts and commentators alike have characterized the current phase of the Cyprus conflict as the most crucial since 1974. As we saw previously, prior to 1999, there was little progress in relation either to the intercommunal negotiations or to the conflict's contextual condition. The warming of Greek–Turkish relations in the late 1990s proved once again that progress on the Cyprus conflict relied heavily on the fluctuating Greek–Turkish barometer. Nonetheless, the catalyst for this newfound optimism rested with the increasing role of the EU in the Cyprus conflict. The continued worth of the EU's contribution to the peace process relies on its capacity to adjust the asymmetric relationships between the two/four main conflictual parties: namely, Greece/Greek Cypriots, Turkey/Turkish Cypriots. For the first time since 1974, it appeared that Greece/Greek Cypriots had some influence, indeed leverage, over Turkey's own European aspirations. The change in this dynamic provided the preconditions for shifts in entrenched positions, attitudes and behaviour, sufficient at any rate to convince the UN Secretary-General to launch a new initiative (UN, 2003a: para. 6).

Drawing on previous failed efforts, Annan set out to utilize external developments as 'enabling' pathways to accommodation between the two communities. The Annan strategy rested on a four-prong 'linkage' approach: first, to utilize Cyprus and Turkey's EU accession as a 'catalyst' for settlement/membership; second, to enlist the active support of the key external parties, the United States and the United Kingdom; third, to lock in the support of the motherlands, Greece and Turkey; and, fourth, to use these pathways to alter the entrenched positions of the two communities (Hannay, 2005). Parallel to this 'game plan', the

intercommunal negotiations, through a combination of proximity and direct talks, would continue deliberating in order to narrow the parties' core differences (i.e. those relating to constitutional, territorial and security matters).

With little progress at the intercommunal talks and confronted with 'conflicting calendars', Kofi Annan submitted his 'Basis for Agreement on a Comprehensive Settlement of the Cyprus Problem' in November 2002.⁹ A number of factors convinced the Secretary-General that this was an opportune time to intervene, including a change of government following the Turkish elections (3 November); the Greek-Cypriot presidential campaign to succeed Clerides (February 2003); Denktaş's recovery from open-heart surgery; and, most importantly, the forthcoming Copenhagen European Summit set to finalize Cyprus's accession and to consider Turkey's candidature (12–13 December) (UN, 2003a: para. 42).

A central plank in the Annan Plan was the attempted nexus with the EU as both content and process. To comprehend the extent to which the EU became an integral part of a political settlement to the Cyprus problem, one need only examine the 183 pages of the UN plan, where, from the very outset, the fate of a Cyprus settlement is linked to its EU accession.

The Annan initiative consisted of two interventions. The first took place between the tabling of the plan (11 November 2002) and the Hague summit (10 March 2003), and the second covered the period from January 2004 to the referendum (24 April 2004). Procedurally, the initiative was interlinked with the Cyprus–EU's enlargement process that aimed at inducting a reunified Cyprus into the

European Union. The interfaced UN–EU timetable entailed interim agreement deadlines that culminated in simultaneous, but separate, referenda of both communities (in the first attempt the referendum was set 16 days before the signing of the EU Accession Treaty and eventually took place a week before the formal accession of Cyprus). The Annan strategy also incorporated Greece and Turkey into the negotiations initially at a track two level (UN, 2003a: para. 50) and later at the second phase of the 13 February Agreement process in Bürgenstock (UN, 2004a: para. 30–41).¹⁰

Annan Plan: Successes and Failures

Despite high expectations of a major policy shift by the newly elected AKP government, Annan's first attempt collapsed. This was due mainly to Denktaş's rejectionist position prevailing as Turkish national policy. After the Hague summit, the looming Iraq crisis shifted Turkey's regional and international attention away from Cyprus.¹¹ However, beyond first-track diplomacy, significant shifts were occurring within the Turkish/Turkish-Cypriot dynamic. The challenge to the Kemalist establishment in Turkey began to alter the contextual sociopolitical parameters in Northern Cyprus. This encouraged Turkish-Cypriot dissenters to challenge Denktaş's political hegemony. Anti-Denktaş mobilization sustained itself throughout the year and fed into the domestic election campaign (14 December 2003). The election

⁹ The Annan Plan was first submitted on 11 November 2002 and revised on 10 December 2002, 26 February 2003 and 29 March 2004. The fifth and final version was completed on 31 March 2004. Corrigenda and clarifications were issued on 18 April 2004 and submitted to the parties on 23 April 2004, at <http://www.cyprus-un-plan.org> (27 April 2004).

¹⁰ The 13 February Agreement consisted of a three-phase process that would lead to a referendum on a finalized plan before the formal EU accession of the RoC (1 May 2004): in phase 1, the parties would have to agree by 22 March 2004; if this was not achieved, then, in phase 2, the UN Secretary-General (SG) would broaden the negotiations to include Greece and Turkey to reach agreement by 29 March 2004; if there was still no agreement, then the UN SG was authorized to finalize the text to be submitted to the referendum (UN, 2004a: Annex I).

¹¹ Verheugen labelled Cyprus the 'first casualty' of the Iraq war, as the latter altered Turkey's national priorities (*Cyprus Mail*, 15 March 2004).

result was a moral victory for the opposition parties but produced a 'hung' parliament comprising the pro- and anti-status quo parties. Eventually, Turkish national intervention compelled opposition leader Mehmet Ali Talat to form a coalition with Serdar Denktaş's Demokrat Parti (DP, Democratic Party).

Just as a more active civil society was imperative to transform the political consciousness in Northern Cyprus – leading to the Turkish Cypriots' acceptance (64.9%) of the Annan Plan – it proved equally important, but with an opposite effect, in the Greek Cypriots' rebuff (75.8%) of the Secretary-General's blueprint.

Complacent that the Greek Cypriots supported Annan's plan, third parties were taken by surprise when most of their political leadership, spearheaded by President Tassos Papadopoulos in his declaration of 7 April 2004, called for a resounding 'no' vote at the referendum. As Papadopoulos was exasperated by Turkey's insufficient troop reduction and international guarantees, his rejectionism rested on his conviction that the negative consequences resulting from a 'yes' vote far outweighed those from a 'no' vote. This compounded the uncertainty facing the Greek Cypriots caused by the disbanding of the RoC.

Closer scrutiny reveals that such naivety on the part of the international community was misplaced, given that all opinion polls had most Greek Cypriots rejecting the Annan Plan consistently ever since it first appeared in November 2002; and despite the strenuous efforts by external third parties, this opposition did not waver prior to the referendum.

Greek-Cypriot rejectionism rested on a combination of historical and contemporary factors. Until Papadopoulos's rejection, the Greek-Cypriot leadership, confronted with a longstanding dilemma, was divided over the Annan Plan. This split resonated with the overall anxiety that beset the Greek Cypriots, especially as they realized the inevitability of a deadline decision, while comforted by the certainty of EU accession. The angst was best

epitomized by the AKEL's contradictory position, which initially supported the 'yes' case, then sought a postponement, only to support the 'no' vote two days prior to the referendum. Supporters of the plan were unable effectively to counter the anti-Annan lobby, initially hamstrung by the Papadopoulos government's non-committal stance indicated by its refusal to undertake a public information campaign.¹² Papadopoulos's intervention reinforced the adversarial (rather than dialogic) atmosphere prevailing among the Greek Cypriots. The majority of Greek Cypriots approached the referendum not as an opportunity to usher in a new era of collaboration, peace and prosperity, but rather as a rear-guard defence to safeguard their sovereignty-identity. Intervention by foreign dignitaries to influence the vote only exacerbated the situation and had the opposite effect.

A preliminary assessment of the factors that militated against success suggests that, despite ample evidence to the contrary, the Secretary-General and others seriously misread, misunderstood and miscalculated Greek-Cypriot public opinion. Their strategy rested on four key errors of judgement: first, the mediators failed to take into account the Greek Cypriots' historical dilemma over a federal solution. As mentioned before, there has always been an undercurrent of dissent over federalism among Greek Cypriots, ever since their (reluctant) acceptance of it in the mid-1970s. Second, by interacting exclusively with the political elite, the mediators created a communicative comfort zone at the expense of identifying, earlier on, and engaging in dialogue with their potential detractors. Third, they overestimated the capacity of bicomunal citizen groups to shift Greek-Cypriot attitudes and behaviour. The

¹² Rather, the RoC spokesperson considered public enlightenment a responsibility of the political parties. PIO, Daily Briefing by the Government Spokesperson (in Greek), 17 February 2004, at <http://www.pio.gov.cy/greek/news/spokesman/spokesman454.htm> (18 February 2004).

presumption that the same strategy that convinced the Turkish Cypriots would work with the Greek Cypriots reveals a fundamental misreading of Cypriot civil society and the conflict's internal dynamics. Finally, by being wedded to a timeline with predetermined goals, the negotiating process left little room for review, reflection and feedback.¹³

Despite its weaknesses, the Annan initiative did have some positive effects. It served as a catalyst for radical change in the Turkish-Cypriot leadership – sidelining Denktaş, who, as seen earlier, was considered as the main ‘spoiler’ of a Cyprus settlement. For the first time, both constituencies were forced to debate the future solution of the Cyprus problem. This, in turn, impacted on the two largest (Greek) Cypriot parties. The right-wing DISY split over the referendum, with the party endorsing the ‘yes’ campaign, while the left-wing AKEL, as seen above, opted for a ‘soft’ ‘no’. The opposing positions of the AKEL and the CTP on the referendum elevated the intercommunal dialogue to a more substantial and pragmatic level, where differences rather than commonalities were accentuated. The ensuing debate exposed the differences within each side, thus allowing the ‘other’ side to observe, first hand, internal divisions and disagreements.

The net effect in conflict resolution terms was to dispel misconceptions regarding monolithic/one-dimensional attitudes on both sides. The pressure to repudiate intransigent (negotiating) behaviour resulted in the lifting of travel restrictions over the Green Line, thus allowing for movement, contact and interaction between Greek and Turkish Cypriots on a critical-mass scale. Although susceptible to external constraints and situational variables, the phenomenon introduced another layer of communication in addition to those usually dominated by the elites.

¹³ In concluding his report to the Security Council on his Cyprus effort, Annan pronounced the need for a ‘fundamental reassessment of the full range of United Nations peace activities in Cyprus’ (UN, 2004a: para. 92).

The Annan project gave the previously marginalized Turkish-Cypriot civil society a new lease of life and created the conditions for joint collaboration. The referendum provided Greek- and Turkish-Cypriot ‘yes’ campaigns the opportunity to collaborate, share resources and knowledge, and, by doing so, created a shared collective memory. The UN’s mediating efforts have shown that Greece and Turkey are amenable to formulating mutually supportive policies and that a solution to the Cyprus problem is largely predicated on domestic developments in Turkey. Finally, the UN exercise has clearly and decisively introduced the EU as an indispensable component in the Cyprus equation.

What Prevented the Annan Strategy from Succeeding?

In addition to the above reasons, a post-mortem of the Annan strategy reveals that, essentially, it stumbled – albeit with contextual variations – on the same cluster of factors that plagued previous mediating efforts.

Synchronizing external and internal processes proved – once again – elusive, and this, ultimately, frustrated outcome delivery. By interfacing the negotiating process with the EU–Cyprus accession calendar, Annan installed a definitive timeline as a mechanism to counter the cycle of indecision. In retrospect, the Annan ‘deadline’ proved counter-productive, because it did not allow sufficient time for the new Turkish-Cypriot leadership to adapt to the new conditions and (re)establish its working relationship with the AKEL.

As mentioned above, the Annan strategy rested on a flawed appraisal of the Greek-Cypriot community and the assumption that the Greek government, as in the Turkish case, could sway its community’s political behaviour. Failure to differentiate the two sets of relationships and devise appropriate strategies was a miscalculation that ultimately led to a failure of the referendum.

As mentioned above, situational factors were also a crucial factor in the failure of the

Annan initiative. The change of governments in Greece and, in particular, the RoC resulted in a diminished sense of ownership, in terms of both process and outcome, on the part of the new leadership. Closer scrutiny of Greek-Cypriot politics reveals that Papadopoulos's rejectionism rested on three main factors: first, the revival of the hardline *mahitiki parataxi* and its diversification beyond traditional ideological constraints; second, the capacity of the 'no' coalition to tap successfully into the population's uncertainty and insecurity; and, third, securing EU accession boosted the sense of denunciation among the Greek Cypriots as they considered themselves to be in an advantageous negotiating position, with the option of improving on whatever settlement was being offered.

All this having been said, it does not follow that Papadopoulos was solely or even primarily to blame for the 'no' vote. Such an assessment is simplistic in that it fails to take account of the underlying causes of Greek-Cypriot rejection. In essence, the Annan strategy failed to reassure the Greek Cypriots about their security concerns (troop reduction and guarantees) and satisfactorily address their emotional attachment to land (regarding property exchange and territorial adjustments).

Reforms that aspire to usher in a new state of affairs require both popular legitimacy and a groundswell of support. Although the referendum became the apex for the Turkish Cypriots' 'quiet' revolution, this did not resonate with their compatriots in the south. In campaigning terms, this reflected the inability of a third force in Cypriot politics to counter the excesses of ethno-nationalism. The absence of the subjective factor in generating a spirit of commonality meant that there was no momentum in the final stages of the negotiating process to boost the cause of a settlement. Rather, confronted with a political dilemma, the majority of the Greek Cypriots opted for the certainty of the status

quo. Inevitably, failure of the referendum has been blamed on political and situational causes, but a deeper scrutiny reveals that polarization is a by-product of the negotiating culture. Both the way the negotiations were conducted and the way the proposals were framed reinforced communalism at the expense of individualism (e.g. by stressing communal quotas, resettlement limitations, separate elections and property rights).¹⁴

Finally, another factor contributing to the failure of the Annan initiative has to do with the EU's own inability to devise and pursue a consistent Cyprus policy. This is symptomatic of the EU's broader problem, namely, the fact that the competing (and conflicting) interests of its member-states often render it incapable of constructing a common foreign and defence policy. The EU's internal difficulties simply meant that the EU itself became a larger arena within which the Cyprus conflict would now be played out. Compounded by its dilemma over whether settlement should be a precondition for Cyprus's accession, the EU failed in two important respects: first, by not dispelling the Greek-Cypriots' hubris over unconditional accession, including their misplaced reliance on *acquis communautaire*; and, second, being unable to offer itself as an alternative security context at both the macro and micro levels (Tocci, 2004).

Impeding and Facilitating Factors After the Annan Effort

Even though it was applied in what were especially favourable conditions, the Annan Plan offered a timely reminder that intercommunal negotiations, first-track diplomacy and

¹⁴ This is best exemplified by those provisions in the Annan Plan that restrict individuals' legal recourse, both domestically and through the European Court of Human Rights, in pursuing their property rights independent of the Cyprus Property Board (see Annex VII, Article 5 and attachment 5, 'Letter to the president of the European Court of Human Rights').

UN mediation – important as their contribution might be – both individually and collectively are nevertheless inadequate. They are by themselves unable to overcome the constraints that have steadfastly prevented the resolution of the Cyprus conflict. There appears to be a missing link that prevents progress at the peace talks from resonating at the level of inter- and intracommunal relations. There are three interconnected factors that contribute to the inadequacy of current and historical negotiating approaches.

The first is a communication problem. In addition to a problem-solving mechanism, the peace talks act as a communicative process. For reasons outlined above, the absence of a multifaceted communicative framework that spans across/between different agents and modes of interaction has meant that the intercommunal talks (and their state participants) have tended to monopolize the peace process. The systemic control of communications has impacted on the Cyprus conflict in two rather profound ways. The physical separation and isolation of the two communities from each other has created, over time, a 'fish-bowl' effect, allowing the adversarial culture prevalent at the intercommunal negotiations to permeate the societal spectrum of their relationship. Separatism and threat perception created a bipolar siege mentality that simultaneously deterred interactive processes between the two communities and reinforced the dominance of state-centric communalism over civil society-infused communal interaction.

The second dilemma stems from the cultural development of group-identity socialization during colonial and post-colonial Cyprus. The inability of Cypriot public policy to distinguish between ethnic identity and political citizenship, as well as communalism and individualism, has hindered the emergence of an integrative civic nationalism. Drawing on this lesson, social scientists are gradually turning their attention to the

necessary subjective preconditions that would sustain any political settlement to the Cyprus discord and prevent it lapsing into the conflictual trend outlined above.

To understand the third impediment, we need to alter our analytical perspective to accurately map power relations between internal and external protagonists. Most analysts have treated the Cyprus dispute as either an interstate conflict between two ethnic groups or a manifestation of a broader Greco-Turkish rivalry. Invariably, conflict resolutionists explain it away in the symmetrical-asymmetrical vernacular as the 'double minority' syndrome (i.e. the Turkish-Cypriot minority within the island and the Greek-Cypriot minority within its sub-regional context). However, contrary to both analyses, the Cyprus conflict has never been between the island's two ethno-communities or even between Greece and Turkey. Rather, the Cyprus conflict has essentially pitted one brand of majoritarianism against another: that is, the Greek-Cypriot community against Turkey. Expressed a little differently, the main forces driving the Cyprus conflict have historically been Greek-Cypriot nationalism and Turkey's national strategic interests. This dichotomy has recently been accentuated in more transparent terms by Turkey's and the (Greek-Cypriot-controlled) RoC's interaction in EU institutions, forums and deliberations.

Learning from Past Mistakes

As we have seen above, consistent in the failed mediated efforts, under a variety of circumstances, has been the prevalence of the impeding over the facilitating factors. To redress this balance and to shift the situation in a more positive direction, a series of initiatives are necessary in order to build confidence and trust among the Cypriot communities. Our purpose is not to exhaust the entire gamut of possible recommendations but to highlight

those proposals that are conceptually and practically relevant to the conflict.

Most short-term recommendations, such as those proposed by the Bonn International Centre for Conversion (Sommer, 2005) and the International Crisis Group (2006), aim at creating conditions that are conducive for the recommencement of settlement talks. In order for Greek- and Turkish-Cypriot advocates of rapprochement to be successful under these conditions, their respective campaigns must be conducted with greater synchronization, and their advocacy needs to be supported by at least a few tangible benefits, even in the short term. Only such practical results are likely to give force to the argument that reconciliation of the island would work to the advantage of both communities. Settlement of secondary issues, such as Varosha, the Nicosia International Airport and implementation of CBMs, would help to mitigate the mistrust that has divided the country while strengthening the cause for collaboration.

Careful analysis of the underlying causes that have led to the failure of peace talks generally, and the Annan initiative in particular, suggests the emergence of new trends that justify cautious optimism. A major impetus to this shift has been the EU-ization of the Cyprus conflict. This has opened more avenues of interaction and communication beyond the political elite, whose capacity to shift Greek-Cypriot and Turkish national policy is limited. By providing the political, economic and security incentives necessary for coexistence, the EU offers itself as an alternative source of identity to that of ethno-nationalism. Such an intervention involves interfacing with local nationalism by enhancing those 'shared' elements that, for historical reasons, have been prevented from steering the political culture towards civil nationalism.

Ultimately, EU-ization's success will rest on the extent to which this process has a *denationalizing* effect on both Greek-Cypriot

and Turkish nationalisms. In the longer term, Europeanization of the Cyprus conflict will have a beneficial transformative effect on the principal parties to the conflict, so long as participation and interaction with EU instrumentalities, forums and institutions are sensitively guided and sustained.

In this context, one idea that deserves attention is the inclusion of Turkish-Cypriot representatives in EU institutions, forums and activities – preferably as part of the Cyprus delegation. This would see the election of two Turkish Cypriots to the European Parliament as part of the six that Cyprus is entitled to – equivalent to the Turkish proportion of the Cyprus population. If such an arrangement proved difficult, either because of RoC objections or because of legal complications, then the two Turkish-Cypriot representatives could attend as observers. It may also be useful to enable the participation of Turkish-Cypriot members in the civil society-orientated European Economic and Social Committee and regional assembly, the Committee of the Regions.

As a 'turning point', EU-ization of the Cyprus conflict is premised on the EU's capacity to alter the context and the scope of the conflict. EU activities have precipitated change in terms of processes, parties, issues and history. In this respect, the challenge for the EU and the UN lies in their capacity to handle a process that strengthens peace-building measures through situational, procedural, institutional, structural and cultural intervention. Attaining a sustainable peace within Cyprus requires reconciliation of competing values, interest and needs: these can be addressed only in a consolidated democratic environment. Dispute issues pertain essentially to the terms of coexistence, the meaning of equality and how to redress the legacy of past injustices (restorative justice). From a transformative perspective, any political settlement to the Cyprus conflict needs to meet two fundamental

prerequisites: to satisfy all stakeholders by limiting further victimization and, thus, to safeguard against future discord; and, second, a successful settlement should entail mechanisms, incentives and processes for intercommunal integration rather than entrenching communalism.

Much is to be gained from joint bicommunal partnerships, ventures, institutions and projects that are diverse (e.g. business, environment, local, epistemic) and conducive to more transparent and participatory processes (which are people-centred and democratic). The re-establishment of contacts between political parties could help to advance a process out of which might emerge common policies across a whole array of issues not usually associated with the hard core of the Cyprus problem. Three interrelated areas lend themselves to common political deliberation: the distribution and depletion of resources, industrial relations and environmental protection.

Another measure that would significantly aid the current climate is for third-party mediators to engage in political discourse with their detractors. By embarking on a consultation process with Greek- and Turkish-Cypriot civil society and commerce, the UN and the EU will encounter the whole spectrum of views, not only on the details of the Annan Plan, but, more importantly, on how Cypriots see the future of Cyprus. Such a 'Cyprus Future Project' would allow the diversity of opinions from people and communities traditionally marginalized from the centre of power/decisionmaking to be taken into account.

This leads us to another idea: the presence of intercultural, interfaith and intercommunal dialogue in Cyprus would greatly enhance reconciliation and rapprochement on the island. One approach in this direction is to establish a centre for dialogue. Funded primarily by the EU, the initiative must be the culmination of local, Greek, Turkish and European civil society and business efforts

with the broadest possible support among Cypriots. In addition to providing support for the above 'Cyprus Future Project', such a centre could conduct a feasibility study on the measures proposed by the Reconciliation Chapter of the Annan Plan – including the Reconciliation Commission, guidelines for school textbooks and the teaching of Greek and Turkish – and it could recommend other steps that would harmonize relations between the communities.

Conclusion

When Cypriots seek an analogy for an unworkable situation, they exclaim that 'it's become like the Cyprus problem'. It was inevitable that, over time, the intercommunal talks would leave an enduring imprint on the psychological constitution of the island's people and acquire the character of the conflict itself.

A summation of the current landscape reveals that, ever since the acceptance of a bicommunal/bizonal federation, negotiations have followed a cyclical pattern, wherein disagreements on the substantial issues have seen both sides regularly return to their entrenched positions. As a result, the parties remained divided, even though they had discussed all issues to the point of exhaustion. In conceptual terms, disagreement over reunification has fundamentally revolved around its structural form and, at least implicitly, the nature of power-sharing. As the Annan initiative demonstrated, underlying these differences has been a current of mistrust between the two sides and a deep sense of insecurity, which the peace talks have not been able to convincingly address.

However, the Annan initiative has also introduced new features into the conflict that, in conjunction with broader internal and external changes, place Cyprus at the crossroads of transition (Potier, 2005). As the prominent new feature, EU-ization/Europeanization of the Cyprus triangle offers a 'unique historical

process' (Rehn, 2005) to securitize the conflict across its various levels and conflicting parties. In juxtaposition with Turkey's EU accession course and policy shift on Cyprus, the preconditions are conducive for a new peace effort to settle the Cyprus problem.

As this article has been at pains to show, no settlement can be externally imposed on the internal parties without their concurrence and participation – a prerequisite for conferring on the peace process the necessary legitimacy. Without this legitimacy, the impeding factors that have been a constant of the negotiating landscape will once again hold sway. To succeed, such a strategy must be grounded in a proper analysis of the impeding and facilitating factors whose imbalance has militated against a successful settlement of the Cyprus problem. Such an effort needs to include two new additional features: an extensive consultation process with a variety/diversity of societal and industry groups beyond the customary political elite; and a culmination of a synchronized local and third-party effort. This would require greater EU collaboration with the UN and the active involvement of other external powers besides the United States and United Kingdom. Candidates might include Russia, Germany and France.

Finally, a caveat: the window of opportunity presented by the EU-ization of the Cyprus conflict is not open-ended. Fluctuations in the contextual parameters occur frequently. There is another possibility, namely, that the Cyprus conflict will become so entangled in Turkey's accession as to remain stalemated along with the latter. In such circumstances, the EU's strongly legalistic approach may help to 'depoliticize' the Cyprus conflict, only to see it descend into endless legal squabbles over land, property and compensation. Lack of progress and tangible outcomes can quickly lead to disappointment, even despair, and a reversion to adversarial nationalism and the security of

the status quo. Can the EU take hold of the underlying psychology of the Cyprus problem and offer an arena in which the parties can constructively reimagine the future? That capacity on the EU's part, conceptual as much as institutional, has yet to be demonstrated.

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